



POLICE DEPARTMENT

August 8, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ronald Miller
Tax Registry No. 921597
23 Precinct
Disciplinary Case No. 2011-6041

The above named member of the Department appeared before me on July 12, 2013, charged with the following:

1. Said Police Officer Ronald Miller, while assigned to the 23rd Precinct, on or about and between April 20, 2010 and October 19, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer on multiple occasions assisted and/or requested the assistance of other members of the service to prevent the processing and adjudication of multiple summonses issued to various individuals.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent testified that he was appointed to the Department on July 1, 1998. After completing his training at the Police Academy he was assigned to the 23 Precinct in Manhattan North where he is still working. His precinct encompasses a portion of Harlem known as Spanish Harlem bounded by 96 Street to 115 Street and from the FDR Drive to Fifth Avenue. Presently he works the day tour as the Highway Safety Officer. He has worked day tours for one year and been in the Highway Safety Unit since August 1, 2005.

As Highway Safety Officer Respondent said he works to prevent vehicle and pedestrian collisions by issuing summonses in collision-prone locations. He said he issues parking summonses, moving summonses and criminal summonses.

Respondent said that he has issued about 150 to 200 summonses per month and over an eight year period he has issued close to 15,000 summonses. He also stated that he has testified at the Traffic Violations Bureau (TVB) every Thursday at the 2:30 p.m. or 4:30 p.m. session and that he averages 20 to 30 cases per week, again over the last eight years. Up until the time he was served with the instant charges he had never been disciplined by the Integrity Control Officer for any action he had taken in drafting or issuing summonses.

All of Respondent's TVB appearances have been at the TVB office in northern Manhattan. During his work he has been approached by union representatives about summonses that had been issued. He explained that this contact could be by telephone or when he returned to the command for meal or end of tour he could be approached by a delegate or a supervisor about summonses he might have written. Explaining what would

happen if he had issued the summons in question Respondent stated, "What would happen is they would ask for the summons, or I would just hand it into the summons box, and that would be it." Asked if that meant the summons would not be adjudicated

Respondent stated:

I have no idea, but they would ask me for the summons, or I would, upon issuance, upon my tour ending, I will put the summons in the box, and I would either testify to the summons when it came up or I wouldn't if it wasn't on the docket. The carbon copy of the summons would be in my locker.

Respondent agreed that he sometimes went to court without the paperwork so he could not testify and the summons would be dismissed. Respondent agreed that is what happened when Officer Galindo asked him about a ticket on behalf of Officer Scott.

Respondent does not know Scott. Nor does Respondent know the person to whom the summons was issued, [REDACTED]. Respondent did not receive any benefit for disposing of the [REDACTED] summons.

Respondent was asked: "In the times you were asked either by a union member or a supervisor to either pull a ticket or a summons, did you receive any benefit for that?" Respondent replied, "No, I never received any benefit of any kind for that. "

Respondent did not know the people who were the beneficiaries of this summons fixing. He never attempted to contact any of these people.

Respondent receives 27 vacation days each year. He also has 18 chart days a year. He is married and currently lives in the [REDACTED] section of [REDACTED]. He has one child, a five year old boy. Depending on the overtime his biweekly paychecks are \$2,300 or \$2,400. He said the five day suspension in the proposed penalty would be "catastrophic." He explained that this was, "Because my wife is [REDACTED], so she depends

on my benefits. I am currently closing on my co-op." [Respondent's Exhibit A is a doctor's note confirming Respondent's wife's ██████████]

Respondent explained that he moved from ██████████ to ██████████ in May. He said that he is still paying the mortgage and maintenance on the ██████████ apartment although he said he should be closing soon. He said he has to pay the rent of the ██████████ apartment so his wife, who is ██████████ can be close to her parents. He noted that his wife's parents help with watching both his wife and their child.

His tours were not changed after he received the instant charges. In his last evaluation he was rated 4.5 out of 5. He has never had a rating below a 4 since he became a Highway Safety Officer.

On cross-examination Respondent agreed that he has been a member of the service for 15 years and that he went to the 23 Precinct directly out of the Police Academy. He agreed that as Highway Safety Officer one of his primary duties is to issue summonses and that he issues about 150 to 200 summonses a month. He also agreed that he had a prior disciplinary action.

He has known the precinct delegate, Galindo, for 15 years, since he started working in the precinct. Respondent noted that Galindo had been his Field Training Officer when he first got to the precinct. Respondent agreed that he considers Galindo a friend and that he socializes with him outside of work.

Respondent indicated that prior to 2011 the summons box was next to the telephone switchboard. He agreed that the box had three slots: one for A summonses, one for B summonses and one for C summonses.

Respondent agreed that during his official Department interview he had said that "taking care of a summons" meant not handing the summons in and that the summons would not be processed in the proper manner.

While Respondent did not recall what he said about "taking care of it in court" he agreed that it meant that the summons would be dismissed, and that it would be dismissed because the officer would not testify.

He agreed that the [REDACTED] summons was dismissed because he did not bring his notes and could not testify about it.

Respondent agreed that at his official Department interview he had acknowledged that as Highway Safety Officer he was approached by a "lot of delegates." He also agreed that he acknowledged that in the previous eighteen months he had been approached more than one or two times and had handed summonses over to a delegate rather than put it in the box. Respondent also agreed that at his official Department interview he had acknowledged that he had reached out to a delegate on behalf of a family member.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 1, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

It must be noted that there are absolutely no mitigating factors presented by Respondent in his testimony. He admitted to the specific acts in this case and indeed acknowledged that he was regularly engaged in the practice of fixing summonses when requested to do so by union delegates or supervisors.

He has explained that the penalty would be a hardship for him and his family. That fact certainly merits consideration but it is not a legally sufficient basis for altering the penalty in this case.

The offense, fixing tickets, is a serious matter that goes to issues of integrity as well as fairness in the enforcement of the law. The fact that many people engaged in this conduct or that it occurred over a period of time does not make it correct, legal or proper. The penalty recommended by the Assistant Department Advocate in this case is consistent with every other similar case. Consequently I recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at anytime without further proceedings. Further, this Court recommends that Respondent forfeit 25 vacation days and 5 suspension days.

Respectfully submitted,

APPROVED
SEP 03 2013
[Signature]
RAYMOND W. KELLY
POLICE COMMISSIONER

[Signature]
Martin G. Karopkin
Deputy Commissioner – Trials

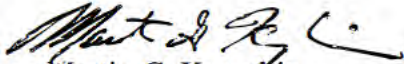
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RONALD MILLER
TAX REGISTRY NO. 921597
DISCIPLINARY CASE NO. 2011-6041

In 2012, Respondent received an overall rating of 4.5 "Extremely Competent/Highly Competent" on his annual performance evaluation. He was rated 4.0 "Highly Competent" in 2010 and 2011. He has been [REDACTED] Excellent Police Duty and one for Meritorious Police Duty. [REDACTED]

Respondent has been the subject of one prior adjudication. In 2004, he forfeited 15 vacation days for, while off duty, removing an individual from the scene of a police incident without permission or authority to do so, failing to remain at the scene, and failing to request the response of the patrol supervisor.

For your consideration.


Martin G. Karopkin
Deputy Commissioner Trials